

229. The Court observes that Israel's legislation and measures impose and serve to maintain a near-complete separation in the West Bank and East Jerusalem between the settler and Palestinian communities. For this reason, the Court considers that Israel's legislation and measures constitute a breach of Article 3 of CERD.

E. The question of self-determination

230. The Court has found that Israel's settlement policy, its acts of annexation, and its related discriminatory legislation and measures are in breach of international law. The Court now turns to the aspect of question (a) that enquires as to the effects of Israel's policies and practices on the exercise of the Palestinian people's right to self-determination. The Court has already affirmed the existence of the right of the Palestinian people to self-determination (*Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, Advisory Opinion, I.C.J. Reports 2004 (I)*, p. 183, para. 118). The Court will first determine the scope of this right and then examine the effects, if any, that Israel's policies and practices have on its exercise.

231. The Charter of the United Nations identifies the development of friendly relations "based on respect for the principle of equal rights and self-determination of peoples" as one of the Organization's purposes (Article 1, paragraph 2, of the Charter). The right of all peoples to self-determination has been recognized by the General Assembly as one of the "basic principles of international law" (Annex to resolution 2625 (XXV) of 24 October 1970). Its importance has been emphasized in numerous resolutions, in particular in the Declaration on the granting of independence to colonial countries and peoples, which confirms the application of the right to all peoples and territories that have not yet attained independence (resolution 1514 (XV) of 14 December 1960, para. 2).

232. The Court has affirmed that the right of all peoples to self-determination is "one of the essential principles of contemporary international law" (*East Timor (Portugal v. Australia), Judgment, I.C.J. Reports 1995*, p. 102, para. 29). Indeed, it has recognized that the obligation to respect the right to self-determination is owed *erga omnes* and that all States have a legal interest in protecting that right (*Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, Advisory Opinion, I.C.J. Reports 2004 (I)*, p. 199, para. 155; *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965, Advisory Opinion, I.C.J. Reports 2019 (I)*, p. 139, para. 180).

233. The centrality of the right to self-determination in international law is also reflected in its inclusion as common Article 1 of the ICESCR and the ICCPR, the first paragraph of which provides: "All peoples have the right of self-determination. By virtue of that right, they freely determine their political status and freely pursue their economic, social and cultural development." The Human Rights Committee has explained that the importance of the right to self-determination stems from the fact that "its realization is an essential condition for the effective guarantee and observance of individual human rights and for the promotion and strengthening of those rights" (General Comment No. 12 (13 March 1984), *Official Records of the General Assembly, Thirty-ninth Session, Supplement No. 40* (UN doc. A/39/40 (SUPP)), Annex VI, para. 1). Indeed, as the Court has affirmed, the right to self-determination is a fundamental human right (*Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965, Advisory Opinion, I.C.J. Reports 2019 (I)*, p. 131, para. 144). In the context of decolonization, the General Assembly has repeatedly emphasized the significance of the right to self-determination as an "inalienable right" (for example, resolution 40/25 of 29 November 1985, para. 3; resolution 42/14 of 6 November 1987, para. 4; resolution 49/40 of 9 December 1994, para. 1). The General Assembly has also underlined that "there is no alternative

to the principle of self-determination” in the process of decolonization (for example, resolution 57/138 (A) of 11 December 2002, para. 3; resolution 59/134 (A) of 10 December 2004, para. 2). The Court considers that, in cases of foreign occupation such as the present case, the right to self-determination constitutes a peremptory norm of international law.

234. The right of self-determination of peoples has a broad scope of application (*Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965, Advisory Opinion, I.C.J. Reports 2019 (I)*, p. 131, para. 144). For the purpose of answering the question put to it, the Court must determine whether the policies and practices of Israel, as the occupying Power, in the Occupied Palestinian Territory impede the exercise of the right of the Palestinian people to self-determination.

235. Many participants have argued that Israel’s occupation of the Occupied Palestinian Territory violates the right of the Palestinian people to self-determination. The policies and practices of Israel that are said to infringe this right include the expansion of settlements and the establishment of associated infrastructure in the Occupied Palestinian Territory; the confiscation of land and demolition of Palestinian structures; the changes to the demographic composition of certain parts of the Occupied Palestinian Territory; the fragmentation of the Occupied Palestinian Territory; and the appropriation of natural resources, including the exploitation of hydrocarbon, mineral and water resources in the Occupied Palestinian Territory. Other participants have expressed reservations. One participant, in particular, has argued that the right to self-determination is relative and should not involve changes to existing frontiers. In its view, the Court should ascertain whether the exercise of the right to self-determination by the Palestinian people has infringed the territorial integrity, political inviolability or legitimate security needs of the State of Israel.

236. In the Court’s view, the following elements are of particular relevance in the present proceedings.

237. First, the Court recalls that the right to territorial integrity is recognized under customary international law as “a corollary of the right to self-determination” (*Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965, Advisory Opinion, I.C.J. Reports 2019 (I)*, p. 134, para. 160). In the context of Palestine, the General Assembly and the Human Rights Council have called for “the respect for and preservation of the territorial unity, contiguity and integrity of all of the Occupied Palestinian Territory, including East Jerusalem” (for example, General Assembly resolution 77/208 of 15 December 2022, ninth preambular paragraph; Human Rights Council resolution 49/28 of 1 April 2022, para. 5). The Court considers that Israel, as the occupying Power, has the obligation not to impede the Palestinian people from exercising its right to self-determination, including its right to an independent and sovereign State, over the entirety of the Occupied Palestinian Territory.

238. The Court has already found that Israel’s settlement policy has fragmented the West Bank and severed East Jerusalem from it (see paragraph 164 above). The sprawl of settlements in the West Bank, coupled with the expansion of a road network to which Palestinians have limited or no access, has had the effect of encircling Palestinian communities in enclaves in the West Bank (see paragraphs 200 and 227 above). Moreover, Israel’s annexation of large parts of the Occupied Palestinian Territory violates the integrity of the Occupied Palestinian Territory, as an essential element of the Palestinian people’s right to self-determination.

239. Second, by virtue of the right to self-determination, a people is protected against acts aimed at dispersing the population and undermining its integrity as a people. In the past, the Court concluded that Israel's construction of the wall, along with other measures, contributed to the departure of Palestinian populations from certain areas, thus risking alterations to the demographic composition of the Occupied Palestinian Territory; for that reason, it severely impeded the exercise by the Palestinian people of its right to self-determination (*Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, Advisory Opinion, I.C.J. Reports 2004 (I)*, p. 184, para. 122). The Court has also found above that Israel's settlement policy as a whole, its annexation of territory and its related legislation and measures that discriminate against Palestinians in the Occupied Palestinian Territory contribute to the departure of Palestinians from certain areas of the Occupied Palestinian Territory, notably from Area C and East Jerusalem. Moreover, Israel's strict restrictions on movement between the Gaza Strip, the West Bank and East Jerusalem divide the Palestinian populations living in different parts of the Occupied Palestinian Territory (see paragraphs 202 and 206 above). In the Court's view, these policies and practices undermine the integrity of the Palestinian people in the Occupied Palestinian Territory, significantly impeding the exercise of its right to self-determination.

240. A third element of the right to self-determination is the right to exercise permanent sovereignty over natural resources, which is a principle of customary international law (see *Armed Activities on the Territory of the Congo (Democratic Republic of the Congo v. Uganda), Judgment, I.C.J. Reports 2005*, p. 251, para. 244). The Court has already found above that Israel has been exploiting the natural resources in the Occupied Palestinian Territory for its own benefit and for the benefit of settlements, in breach of its obligation to respect the Palestinian people's permanent sovereignty over natural resources (see paragraph 133). In depriving the Palestinian people of its enjoyment of the natural resources in the Occupied Palestinian Territory for decades, Israel has impeded the exercise of its right to self-determination.

241. Fourth, a key element of the right to self-determination is the right of a people freely to determine its political status and to pursue its economic, social and cultural development. This right is reflected in resolutions 1514 (XV) and 2625 (XXV), and it is enshrined in common Article 1 of the ICCPR and the ICESCR (see paragraph 233 above). The Court has already discussed the impact of Israel's policies and practices on some aspects of the economic, social and cultural life of Palestinians, in particular by virtue of the impairment of their human rights. The dependence of the West Bank, East Jerusalem, and especially of the Gaza Strip, on Israel for the provision of basic goods and services impairs the enjoyment of fundamental human rights, in particular the right to self-determination ("Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem, and of the Arab population in the occupied Syrian Golan", UN doc. A/78/127-E/2023/95 (30 June 2023)).

242. In addition to the injury inflicted on individual persons, the violation of Palestinians' rights — including the right to liberty and security of person, and the freedom of movement — has repercussions on the Palestinian people as a whole, frustrating its economic, social and cultural development. In this connection, the Economic and Social Commission for Western Asia observed in 2023 that

"Israeli-imposed restrictions, expansion of the illegal settlements and other practices not only prevent development but have also exacerbated the fragmentation of the

Palestinian territory. These policies and practices have had a severe humanitarian, economic, social and political impact on Palestinians and their ability to exercise their fundamental human rights. Their repercussions have had a cumulative, multilayered and intergenerational impact on the Palestinian society, economy and environment and have caused the deterioration of the living conditions of the Palestinians, their forced displacement, ‘de-development’ of the Occupied Palestinian Territory, entrenchment of the Palestinian economy’s asymmetric dependence on Israel, and exacerbation of Palestinian institutional dependence on foreign aid.” (“Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem, and of the Arab population in the occupied Syrian Golan”, UN doc. A/78/127-E/2023/95 (30 June 2023), para. 130.)

The Court thus considers that Israel’s policies and practices obstruct the right of the Palestinian people freely to determine its political status and to pursue its economic, social and cultural development.

243. The prolonged character of Israel’s unlawful policies and practices aggravates their violation of the right of the Palestinian people to self-determination. As a consequence of Israel’s policies and practices, which span decades, the Palestinian people has been deprived of its right to self-determination over a long period, and further prolongation of these policies and practices undermines the exercise of this right in the future. For these reasons, the Court is of the view that Israel’s unlawful policies and practices are in breach of Israel’s obligation to respect the right of the Palestinian people to self-determination. The manner in which these policies affect the legal status of the occupation, and thereby the legality of the continued presence of Israel in the Occupied Palestinian Territory, is discussed below (see paragraphs 255-257).

VI. EFFECTS OF ISRAEL’S POLICIES AND PRACTICES ON THE LEGAL STATUS OF THE OCCUPATION

A. The scope of the first part of question (b) and applicable law

244. The Court will now turn to the first part of question (b) on which the General Assembly requested its opinion and will examine whether and, if so, the manner in which the policies and practices of Israel have affected the legal status of the occupation in light of the relevant rules and principles of international law. It will begin by further determining the scope of the first part of question (b) posed by the General Assembly.

245. As shown in the Court’s reply to question (a) above, Israel has adopted certain policies and practices which are not in conformity with the legal régime governing occupation. Moreover, the above reply to question (a) shows that Israel’s policies and practices, including its continued expansion of settlements, are designed to establish facts on the ground that are irreversible, which entrench the annexation of large parts of the Occupied Palestinian Territory and impede the exercise of the right to self-determination by the Palestinian people (see paragraphs 162-173 and 230-243 above). The Court is of the view that these policies and practices, and the creation of facts on the ground have significant effects on the legal status of the occupation and thereby on the legality of the continued presence of Israel in the Occupied Palestinian Territory.